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A BRIDGE TO WHERE? INTRODUCING THE INTERIM BILL OF RIGHTS

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INTRODUCTION

What is the point of our Bill of Rights? The Bill is Chapter 3 of the interim Constitution,¹ which declares itself to be aspiring to be 'a historic bridge between the past of a deeply divided society characterized by strife, conflict, untold suffering and injustice, and a future founded on the recognition of human rights, democracy and peaceful co-existence and development opportunities for all South Africans, irrespective of colour, race, class, belief or sex'.² If this bridge is successfully to span the open sewer of violent and contentious transition, those who are entrusted with its upkeep will need to understand very clearly what it is a bridge from, and what a bridge to.

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1 Constitution of the Republic of South Africa Act 200 of 1993.

The interim Constitution emerged from the Multi-party Negotiating Process (MPNP) at the World Trade Centre in Kempton Park during 1993. Political approval of the Constitution was the responsibility of a body called the Negotiating Council, on which all the political parties participating in the MPNP were represented. What the Council approved was enacted by Parliament, with relatively minor amendments. The initial drafting was the responsibility of two committees: the Technical Committee on Constitutional Issues and the Technical Committee on Fundamental Rights during the Transition. The latter was responsible for Chapter 3—the Bill of Rights—and the former for the rest of the Constitution. This division of labour is visible in the final product. Thus, for instance,

(a) Chapter 3 declares itself binding only on all legislative and executive organs of state (s 7(1)); but Chapter 1 declares the Constitution as a whole to be binding on all legislative, executive and judicial organs of state (s 4(2)); and

(b) Chapter 3 gives '[a]ny superior court' competence to inquire into the validity of the declaration of a state of emergency and any action taken under it (s 34(3)), questions which plainly engage the interpretation, protection and enforcement of the Constitution; but by Chapter 7 the Appellate Division, a superior court, is deprived of jurisdiction over any matter within the jurisdiction of the Constitutional Court (s 101(5)), and the latter court is given jurisdiction over 'all matters relating to the interpretation, protection and enforcement' of the Constitution (s 98(2)).

Because of dissatisfaction with some of the earlier drafts of the Technical Committee on Fundamental Rights during the Transition, an Ad Hoc Committee, consisting of lawyers representing certain parties on the Negotiating Council, was formed. The Ad Hoc Committee had a hand in redrafting some of the clauses in the Bill.

2 These words appear in the postamble to the Constitution, entitled 'National Unity and Reconciliation'.

What the bridge is from is a culture of authority. Legally, the apartheid order rested on the doctrine of Parliamentary sovereignty. Universally, that doctrine teaches that what Parliament says is law, without the need to offer justification to the courts. In South Africa, since Parliament was elected only by a minority, the doctrine taught also that what Parliament said was law, without a need to justify even to those governed by the law. The effect of these teachings, at the apogee of apartheid, was to foster an ethic of obedience. The leadership of the ruling party commanded Parliament, Parliament commanded its bureaucracy, the bureaucrats commanded the people.

These teachings were stronger than the legal order they supported. Obedience spilled over from law into practice. Apartheid policies were implemented by governmental authorities,³ private organizations and individuals not required by law to do so. The consequence was a social monolith, with no effective counterweights to government power.

This culture of authority was an indispensable nursery for the feature of apartheid that most people would consider its defining characteristic: the reduction to law of racial discrimination — differentiation on the ground of race that is not justified.⁴ Without a culture of authority it is difficult to imagine how its gardeners could have cultivated the forest of apartheid statutes whose most distinctive feature was their want of justification.

If the new Constitution is a bridge away from a culture of authority, it is clear what it must be a bridge to. It must lead to a culture of justification — a culture in which every exercise of power is expected to be justified; in which the leadership given by government rests on the cogency of the case offered in defence of its decisions, not the fear inspired by the force at its command. The new order must be a community built on persuasion, not coercion.

If the Constitution is to be a bridge in this direction, it is plain that the Bill of Rights must be its chief strut. A Bill of Rights is a compendium of values empowering citizens affected by laws or decisions⁵ to demand justification. If it is ineffective in requiring governors to account to people governed by their decisions, the remainder of the Constitution is unlikely to be very successful. The point of the Bill of Rights is consequently to spearhead the effort to bring about a culture of justification. That idea offers both a standard against which to evaluate Chapter 3 of the interim

3 Such as local authorities and statutory bodies.

4 Racial discrimination is not a descriptive term, connoting any differentiation on the ground of race, or even any disadvantage inflicted on account of race. If it were, it would be used to encompass racial preferences that remedy the effects of racial disadvantage even by people who approve of such preferences; but supporters of such preferences are anxious to distinguish them from racial discrimination. Racial discrimination is a term of censure, used to condemn racial differentiation that is not justified.

5 After this, the word 'decisions' will be used to embrace both laws and other kinds of decisions that may be brought under scrutiny by the Bill of Rights. A law is of course a kind of decision.

Constitution and a resource with which to resolve the interpretive questions that it raises.

THE TEXT

Structure of the Inquiry: Limitation

The design of the Bill of Rights makes it plain that the rights which it proclaims are standards of justification — standards against which to measure the justification of the decisions challenged under them. The rights in the Bill are not framed as absolutes, with which anything that collides is automatically annulled. Each of the rights is capable of restriction under s 33, the provision — known as the limitation clause — which determines conditions under which limitation of the right is justified. So a challenge under the Bill cannot be resolved merely by finding the decision challenged to be in conflict with the idea represented by the right announced in the Bill. A challenge under the Bill opens up an inquiry into the justification of the decision challenged.

In at least two ways, however, it may be thought that the Bill's method of opening decisions to an inquiry into their justification is somewhat too elaborate.

First, s 33 creates no fewer than three standards of scrutiny under which to test limitations upon rights in the Bill. The least protected category of rights may be limited by law of general application to the extent that the limitation is reasonable, justifiable in an open and democratic society based on freedom and equality, and does not negate the essential content of the right in question.⁶ A limitation on a right in the most protected category has to satisfy those criteria and also be 'necessary'.⁷ Between these two categories lies an intermediate and hybrid category. So far as the rights listed in it relate 'to free and fair political activity', they enjoy the highest level of protection; so far as they do not, they attract only the lowest.⁸

The wisdom of dividing the rights in the Bill into these three categories will no doubt prove to be one of its most controversial features. Three categories is both too few and too many. It is too few because the rich spectrum of considerations which ought to be brought to bear in deciding what constitutes a legitimate limitation to each of the well over a hundred distinct rights that can be identified in the Bill (in the thousands of contexts to which they will be applicable) cannot be compressed into a triad. And it is too many because some of the rights which appear higher

6 Section 33 (1).

7 Section 33(1)(aa).

8 Section 33(1)(bb).

in this trilaminar system cannot be distinguished, in the abstract, from others which appear lower. The work of identifying the justified limitations on the Bill's rights calls for a supple and nuanced jurisprudence, not a rule of thumb, pinkie and index finger. The three categories are mechanical and arbitrary.

Freedom of Speech

Possibly the most arbitrary categorization is the one which assigns freedom of speech and expression, including freedom of the press and the other media⁹ to the intermediate category of protection. It goes without saying that freedom of speech is foundational to democracy. In the United States it is often said that it is no accident that free speech is protected by the First Amendment to the Constitution: it is primary in much more than a numerical sense. And if free speech is foundational to an established and vigorous democracy, it is doubly so to a culture of justification which is struggling for viability. Open debate is indispensable to that aspiration. Without freedom of speech, there can be no ethic of persuasion, only one of coercion.

One feature of the Bill of Rights which makes this categorization particularly arbitrary is the decision of the drafters to put the freedoms of conscience, thought, belief and opinion¹⁰ in the most protected category. Freedom of speech and expression merge seamlessly with those freedoms, and it is difficult to see why a line should be drawn between them, or how it can be. What is the point of protecting freedom of thought if one is unfree to speak one's thoughts? And is opinion really being protected if it cannot be expressed? What is more, the freedoms of conscience, thought, belief and opinion include 'academic freedom in institutions of higher learning', and the freedoms of speech and expression include the 'freedom of artistic creativity and scientific research'. Freedom to undertake scientific research is usually exercised as part of academic freedom in an institution of higher learning, so this ordering of these freedoms seems to blur even further the line between what is protected less and what is protected more.

The danger is that a court may read the hybrid protection of free speech — greater protection of speech related to free and fair political activity, lesser protection of any other kind of speech — as disclosing an intention liberally to permit state interference with press scrutiny of evils such as labour exploitation, defective consumer products, threats to the environment, professional malpractice, perhaps even routine maladministration.

9 Section 15(1), which reads: 'Every person shall have the right to freedom of speech and expression, which shall include freedom of the press and other media, and the freedom of artistic creativity and scientific research.'

10 Section 14(1), which reads: 'Every person shall have the right to freedom of conscience, religion, thought, belief and opinion, which shall include academic freedom in institutions of higher learning.'

The consequences of such a reading for openness and accountability would be disastrous.

What is even more puzzling about the relegation of speech to the intermediate category of protection is that, in another respect, the drafters of the Bill evinced acute awareness of the importance of cultivating an ethic of persuasion. Section 15(2) requires all media financed by or under the control of the state to be regulated in a manner 'which ensures impartiality and the expression of a diversity of opinion'.¹¹ This is not a provision routinely included in constitutional clauses which protect freedom of speech, and it reflects a more than ordinary level of concern to enrich and unshackle public debate; a level of concern which it is not easy to square with giving freedom of speech only second order protection.

No Absolute Rights: Detention without Trial

The second respect in which the provision in the Bill for opening decisions to an inquiry into their justification may be thought too elaborate is that all the rights in the Bill invite such an inquiry, and none are absolute, not even the rights to freedom from torture¹² and servitude.¹³ It is to be hoped that that does not generate a jurisprudence of justifiable limitations on freedom from torture and slavery. Much the same concern arises in relation to non-emergency detention without trial.

Detention without trial is arguably the polar opposite of a culture of justification. Detention without trial means that what many cherish as their most important liberty, freedom of the person, may be removed without a most basic kind of justification — proof of criminal conduct established in a court of law. Despite that, most constitutional democrats accept that a democratic order, or a democratizing one, may, in the face of a genuine emergency, be forced by way of self-preservation to resort to detention without trial. In the face of such a necessity, constitutional democrats generally retreat from insisting that incarceration be justified in a criminal court to a more modest kind of justification: they require only that the genuineness of the emergency and the necessity for the action taken under it be demonstrable.

Detention without trial under a state of emergency is provided for in s 34. In a carefully drafted provision, the drafters have brought emergency detention under the discipline of compulsory justification in several ways. For one thing, the declaration itself of a state of emergency

11 This is an adaptation of Art 6(2) of the Democratic Party's *Draft Bill of Rights* (May 1993), which requires the state, in respect of 'the exercise of its control, if any, over any public media . . . [to] ensure diversity of expression and opinion'.

12 Section 11(2).

13 Section 12. The Afrikaans text renders 'servitude' as 'slawerny', the most obvious translation of which is slavery.

expires after 21 days unless it is renewed by a two-thirds majority in the National Assembly for three months at a time.¹⁴ The effect of that would ordinarily be to require the government to justify the declaration of a state of emergency to at least one party other than the ruling party.¹⁵ The necessity, moreover, of both the declaration and anything done under it is justiciable before any superior court.¹⁶ And the necessity of a detention is specifically made justiciable.¹⁷ The combined effect of these protections is to put the government under strong obligations to justify its actions to bodies independent of it — to justify the general necessity of the state of emergency in court and to a supermajority in Parliament, and to justify the particular necessity of any detention in court. These obligations are strengthened by a constitutional duty on the state to supply written reasons to justify any detention.¹⁸

It would be incongruous to bring emergency detention under so rigorous a régime of justification, but continue to permit political detention without trial outside a state of emergency. It would make no sense to require the need for political detention without trial to be shown by demonstrating the genuineness of the emergency to bodies independent of the government, but then permit such detention without requiring that need to be demonstrated. The corollary is that the denial of personal freedom outside a demonstrably genuine emergency ought generally to be capable of justification only by adducing the evidence necessary to procure a criminal conviction. To that general corollary there may have to be exceptions, to provide, say, for detention preparatory to extradition, or to secure the attendance of the accused at a criminal trial, or prevent the spread of infectious diseases, or confine those whose mental illness makes them dangerous. These kinds of cases are commonly catered for by specific exceptions,¹⁹ and a constitution which valued freedom of the person highly would enact mechanisms for ensuring that they could be invoked only when their application was justified.

The Bill of Rights does disclose a high degree of concern for freedom of the person. Section 11(1), which governs the position outside of a state of emergency, is not content merely to entrench that freedom; it goes on

14 Section 34(2).

15 This constraint would obviously lose most of its value if the ruling party, on its own, commanded a two-thirds majority in the National Assembly. But that kind of preponderance would in any event bring the ruling party within striking distance of the two-thirds majority of a joint sitting of the National Assembly and the Senate necessary to amend or rewrite most of the Constitution itself (ss 62 and 73). No constitutional device can help an electorate which is determined not to protect itself against tyranny.

16 Section 34(1), (3) and (4).

17 Section 34(6)(c).

18 Section 34(6)(g).

19 See, for example, Art 5(1) of the European Convention on Human Rights.

to outlaw detention without trial by name.²⁰ But the value of this strong stand against non-emergency detention is put at some risk by the failure to make it absolute, subject to whatever exceptions might be thought indispensable. Like all the rights in the Bill, those protected by s 11(1) are limitable. What is more, in two other sections, the Bill seems to envisage non-emergency detention. Section 25 lists the rights of detainees separately from those of arrested and accused persons, and s 30(2) requires a child who is in detention to be treated in a manner that takes account of his or her age.

Against these features, however, must be set the consideration that the right in s 11(1) to freedom from non-emergency detention is included in the category of rights most protected under the limitation clause. That means that it cannot be limited except by law of general application which (a) is reasonable and (b) is necessary and (c) is justifiable in an open and democratic society based on freedom and equality and (d) does not negate the essential content of the right in question. The right in question is the right not to be detained without trial. It is difficult to imagine a political detention law which could satisfy all these requirements. For one thing, it would struggle to avoid negating the essential content of the right not to be detained without trial. For another, it is difficult to imagine how such a law could ever be necessary, since the Bill makes separate provision for necessity — it caters fully in s 34 for a state of emergency. From all of which it seems that, on a proper interpretation of the Bill, s 11(1) outlaws non-emergency political detention altogether. If to that the objection is raised that s 25 and s 30(2) appear to envisage non-emergency detention, the answer must be that these provisions are to be read as catering for the exceptional categories of non-emergency detention mentioned above, not for non-emergency political detention.

On a proper construction of the Bill of Rights, therefore, it seems that it outlaws non-emergency political detention altogether. It is nevertheless a great pity that that has not been done explicitly, because there can be no guarantee that the Bill of Rights will be given its proper construction. The limitability of s 11(1), coupled with the fact that the Bill does envisage non-emergency detention, invites an executive-minded court to uphold a non-emergency political detention law. If that happens, it will undermine the Bill's contribution to a culture of justification, because detention without trial not justified by a genuine emergency, demonstrated in the kinds of ways provided for in s 34, is anathema to a real effort to bring government action under the discipline of accountability.

In two respects, then, the methods employed by the Bill to foster an inquiry into the justification of the decisions within its remit are too elaborate, and the consequence is a tendency to undermine the

²⁰ Section 11(1) reads thus: 'Every person shall have the right to freedom and security of the person, which shall include the right not to be detained without trial.'

contribution that the Bill makes to a culture of justification. The first is the triocular scrutiny introduced by the limitation clause, which injects an element of arbitrariness. The second is the failure to remove certain rights from the arena of justification altogether by making them illimitable.

Administrative Justice

In important respects, however, the Bill gives a lead which, properly followed, would put South Africa at the frontiers of the search for a culture of justification. Potentially very prominent here is s 24, the administrative justice clause.

This section reads thus:

'Every person shall have the right to—

- (a) lawful administrative action where any of his or her rights or interests is affected or threatened;
- (b) procedurally fair administrative action where any of his or her rights or legitimate expectations is affected or threatened;
- (c) be furnished with reasons in writing for administrative action which affects any of his or her rights or interests unless the reasons for such action have been made public; and
- (d) administrative action which is justifiable in relation to the reasons given for it where any of his or her rights is affected or threatened.'

The object of s 24(a) is to annul ouster clauses: since it creates a constitutional right to lawful administrative action, it vitiates legislative provisions which attempt to insulate administrative action from judicial review, because administrative action which in the absence of such a provision is reviewable — in the sense that it is liable to be set aside on review — is unlawful.²¹ The force of s 24(a), it seems, is consequently to overrule decisions such as *Staatspresident v United Democratic Front*,²² which decided that the ouster clause²³ in the Public Safety Act 1953²⁴ had

21 Pace the General Council of the Bar, which expressed the opinion, during the drafting process, that 'to entrench a "right" to "lawful" administrative decisions, is without content. The "right" to "lawful" administrative decisions, appears to be simply the right to decisions that do not stand to be impugned by way of review. The formulation therefore gives no content to the grounds of review that may vitiate an administrative decision' (General Council of the Bar of South Africa *Submissions to Technical Committee on Fundamental Rights during the Transition (Seventh Progress Report: 29 July 1993)* (10 August 1993) 18).

This opinion seems to overlook the fact that what was being drafted here was not a statute, but a constitution. If it had been proposed to enact a right to lawful administrative decisions in a statute, it might fairly have been said that the proposed enactment was doing no more than restating the effect of the existing law, and consequently that the enactment was 'without content'. But the effect of restating the existing law in the Constitution is to protect it against legislative interference (ss 4 and 7). That is why the effect is to block ouster clauses; a consequence very far from being without content.

22 1988 (4) SA 830 (A).

23 Section 5B.

24 Act 3 of 1953.

the effect of defeating an attack upon an emergency regulation for uncertainty.²⁵ If uncertainty is a ground of review at all — and no one says it is not — its presence makes a regulation²⁶ contaminated by it unlawful, contrary to s 24(a), for if the regulation were lawful, no court would be entitled, in the absence of the ouster, to strike it down.²⁷ The right in s 24(a) consequently brings within the reach of judicial review important classes of administrative action which might otherwise lie beyond judicial scrutiny; it therefore makes an important contribution to fostering the ethic of justification.²⁸

The same is true of s 24(b), the right to procedurally fair administrative action. At a minimum, this paragraph requires a court applying it to consider whether any decision within its ambit can be taken to have been decided fairly if the person affected has not first been heard. And the person affected will not ordinarily be taken to have been heard if the case which he or she has to meet has not been disclosed, and an opportunity given to reply to it. The pressure which this paragraph consequently puts on officials to disclose the case upon which they propose to act, and debate it with those whom it affects, clearly also fosters the enterprise of encouraging decisions to be justified.

Nowhere, however, is the contribution of s 24 to that enterprise more conspicuous than in its paragraphs (c) and (d). Paragraph (c) puts a general duty on officials to give reasons for their decisions, something that South African administrative lawyers have sought for decades as an essential prerequisite to close judicial review of administrative action. And paragraph (d) expressly empowers a court to inquire into the justification of administrative action.

The effect of this paragraph is to overrule two closely linked doctrines which have stultified review for unreasonableness in our administrative law. The first doctrine is that unreasonableness is not, in itself, a reviewable defect; unreasonableness is material only so far as from it may be inferred the existence of some other deficiency in the decision.²⁹ That other deficiency has been described variously, but under inspection generally comes down to abuse of discretion.³⁰ The second doctrine,

25 See also *Natal Indian Congress v State President* 1989 (3) SA 588 (D), which extended the effect of *Staatspresident v United Democratic Front* from uncertainty to unreasonableness.

26 I take the expression 'administrative action' in s 24 to be wide enough to cover a regulation, or, for that matter, any other kind of legislation made by an executive authority.

27 Cf the judgments of Rabie ACJ at 853 and Hefer JA at 872.

28 It remains open to the state, of course, to try to defend a particular ouster clause as a justifiable limitation on s 24(a) under s 33. This is another unfortunate consequence of the failure to make some rights in the Bill illimitable.

29 See, for example, *Union Government v Union Steel Corporation (South Africa) Ltd* 1928 AD 220 at 236-7.

30 See, for example, *Union Government v Union Steel Corporation (South Africa) Ltd* supra note 29 at 237; *Administrator, Transvaal and The Firs Investments (Pty) Ltd v Johannesburg City Council* 1971 (1) SA 56 (A) at 80.

usually perceived to be a corollary of the first,³¹ is that a merely ordinary degree of unreasonableness does not suffice to vitiate the decision; there must be some egregious degree of unreasonableness.³² Prevailing authority teaches that what is required is a decision which is 'grossly unreasonable to so striking a degree' as to warrant the appropriate inference;³³ entailed in which is that the decision must be worse than strikingly grossly unreasonable.

Section 24 (d) deals this doctrine of deep deference a blow which all friends of official accountability will wish to be mortal. It empowers a court to review administrative decisions within its reach for justifiability — which is to say, for reasonableness — on its own.³⁴ The courts will have

31 But see my 'Administrative Law in South Africa' (1986) 103 *SALJ* 615 at 629–30.

32 See, for example, *Union Government v Union Steel Corporation (South Africa) Ltd* supra note 29 at 237; *Administrator, Transvaal and The Firs Investments (Pty) Ltd v Johannesburg City Council* supra note 30 at 80. This is now subject to the exception (the limits of which are unclear) recognized in *Hira v Booysen* 1992 (4) SA 69 (A) at 93.

33 *National Transport Commission v Chetty's Motor Transport (Pty) Ltd* 1972 (3) SA 726 (A) at 735.

34 Paragraph (d) uses the word 'justifiable' instead of 'reasonable'. The wording derives from dissension during the drafting. In one of their early reports, the drafters of the Bill opposed the entrenchment of review of administrative decisions for unreasonableness on the ground that that would have 'far-reaching consequences for South African administrative law' (Technical Committee on Fundamental Rights during the Transition *Seventh Progress Report* (29 July 1993) 6). This was a very curious objection — after all, much of the Bill, and the Constitution of which it is part, will have cataclysmic consequences for South African law — and it sparked fierce debate.

At that stage there appeared to be two sources of resistance among political negotiators to the notion of review for unreasonableness. The one was the usual — and legitimate — anxiety that that idea might be abused by the courts to usurp the policymaking prerogatives of the executive. The other was an anxiety arising from a somewhat irrational distrust of the word 'reasonable'.

In an effort to allay these concerns, I proposed a compromise administrative justice clause to certain political negotiators. The compromise clause tried to meet the first anxiety by defining the scope of the review jurisdiction in a way which attempted to guard against the kind of abuse feared. Paragraphs (2) and (3) of the compromise clause (below) embody this effort. And it tried to meet the second anxiety by replacing the word 'reasonable' with 'justifiable', which I take to mean the same thing, but which is apparently freer of the connotations which dismay those who fear 'reasonableness'.

The compromise clause read as follows:

'Compromise Administrative Justice Clause:

18. (1) Every person shall have the right not to be affected adversely by a decision made in the exercise of public power which is unlawful, procedurally unfair, or not justifiable.

(2) A decision shall not be considered justifiable unless:

(a) a plausible answer can be given to any reasonable objection to the decision;

(b) a plausible explanation can be given why the decision was chosen in preference to any arguably superior alternative; and

(c) a rational connection can be shown between the premises of the decision (including any evidence or argument on which it purports to be based) and the decision itself.

(3) In deciding whether a decision is justifiable, the [designated authority] shall not usurp the prerogative of the decisionmaker to make such policy choices as the decisionmaker considers desirable in the interests of good governance, and it shall respect and uphold every such choice.

(4) Every person shall have the right to be furnished with reasons in writing for any decision, made in the exercise of public power, which affects him or her adversely.'

In the end, as can be seen from the administrative justice clause actually enacted (quoted in the text above), the legitimate anxiety was ignored, and no wording was adopted to guard against it; but the irrational anxiety was met, and the word 'justifiable', the sole survivor of the compromise clause, somehow found its way into the final product.

(The expression 'designated authority' was used to fit with the text then current. At that stage it was still an open question which courts would be entrusted with the enforcement of the Bill.)

to develop a theory of what makes a decision justifiable, and what makes it unjustifiable. A good starting point would be to recognize that the justifiability of an administrative decision is a matter not of second-guessing the policy choices that it entails, which is the prerogative of the decisionmaker, but rather of the soundness of the process of deciding which went into its making. It is suggested that an administrative decision cannot be taken to be justifiable unless (a) the decisionmaker has considered all the serious objections to the decision taken and has answers which plausibly meet them; (b) the decisionmaker has considered all the serious alternatives to the decision taken, and has discarded them for plausible reasons; and (c) there is a rational connection between premises and conclusion — between the information (evidence and argument) before the decisionmaker and the decision taken.³⁵ A decisionmaker who is conscious, while deciding, that a court may eventually scrutinize his or her decisions under these criteria is under serious pressure to deploy a thorough and disciplined decisionmaking process; one likely to yield wise decisions.³⁶

So understood, s 24(d) would lift the shutters that now veil the inner workings of so much administrative decisionmaking, and expose it to the lights of the ethic of justification. In one respect, however, s 24(d) may be thought to render administrative action excessively vulnerable: it requires administrative action to be justifiable 'in relation to the reasons given for it'. This qualification might be read as referring back to s 24(c), which entitles one to demand reasons in writing for administrative action. If s 24(d) requires administrative action to be justifiable by the reasons supplied in response to a demand made under s 24(c), that might wreak administrative havoc, for it would require officials to supply reasons under s 24(c) which are carefully enough drafted to take the decision in due course past judicial review under s 24(d).

Suppose, in other words, that an official, faced with some urgent demand for written reasons under paragraph (c), responds carelessly, omits one of the reasons which actually moved the decisionmaker to take the decision, and consequently furnishes a set of written reasons which is not full enough to demonstrate justifiability under paragraph (d). If on judicial review under paragraph (d) the decisionmaker has to show the decision to be justifiable on the basis of the careless statement of reasons, the court would have to strike down the decision, even although it is one which might in fact be justifiable, just because the written statement is incomplete. On this reading of s 24, the decision would stand or fall by the written statement of reasons, and that statement could not be augmented with reasons not mentioned in it but which did actually move the

35 See, further, my 'Reconsidering Review: Participation and Accountability' 1993 *Acta Juridica* 35 at 40-43.

36 Which is not to say that the idea of justifiability entitles a court to strike down a decision merely on the ground of its unwise.

decisionmaker to take the decision and which, together with the written reasons, do in fact show the decision to be justifiable.

So the drafters, who initially resisted the idea of entrenching review for unreasonableness altogether,³⁷ have, somewhat perversely, in the end embodied it in a form which may be read as being among the most demanding versions possible of that idea. Indeed, this version is so demanding that it may sabotage the idea altogether. There can be few civil services anywhere which have the capacity regularly to produce statements of reasons that, without pre-litigation revision, are sufficiently meticulously drafted to assure passage past judicial review. Our own civil service, in the nature of the transition that South Africa is undergoing, will be relatively inexperienced, and it will be dealing with a great tide of expectations, and an immense volume of work. To burden it with the kind of rigour which this reading requires might undermine government altogether.

And that might put the very idea of review for unreasonableness in jeopardy, because it would give the government a case for a constitutional amendment to free itself of the burden imposed by this reading. The result might well be the repeal altogether of s 24(d). And that would of course gravely subvert the contribution that s 24 makes to the advent of a culture of justification.

If the courts can read the Bill of Rights in a way which averts this consequence, they should: if the point of the Bill is to foster a culture of justification, it is the courts' duty to read the Bill in the way which best preserves its capacity to do that. And there are ways of avoiding the reading of s 24(d) which would put the Bill's contribution to such a culture in jeopardy. The courts might note, for instance, that s 24(c) and s 24(d) govern different classes of administrative action: the right to written reasons in s 24(c) applies to administrative action which affects one's rights or interests, but the right to justifiable decisions in s 24(d) applies to administrative action which affects or threatens one's rights. This discrepancy is a cogent argument for refusing to read the two paragraphs together; for refusing to read 'justifiable in relation to the reasons given for it' in paragraph (d) as referring to the written reasons made compulsory by paragraph (c). That would free a court to read 'the reasons given for it' in paragraph (d) as referring to the reasons supplied in judicial review itself by way of justifying the decision. The effect would be to make s 24 an instrument for improving governance, not frustrating it. A reading of s 24 which achieves that is plainly to be preferred.

This point draws attention to the most conspicuous idiosyncrasy in s 24: that each of the four rights that it confers applies to a different class of administrative action: paragraph (a) confers a right to lawful administrative action where one's rights or interests are affected or threatened;

37 See note 34 above.

paragraph (b) confers a right to procedurally fair administrative action where one's rights or legitimate expectations (but not one's interests) are affected or threatened; paragraph (c) confers a right to written reasons where one's rights or interests are affected (but not threatened); and paragraph (d) confers a right to justifiable administrative action where one's rights (but not one's interests or legitimate expectations) are affected or threatened. The courts will have their work cut out developing a coherent theory to account for these variations.

Freedom of Information

The drafting is also problematic in s 23, the right of access to official information. Access to official information is a matter of the utmost importance to any effort to bring about a culture of justification. A government which can close its files will be under much weaker pressure to justify its decisions than one which has to open them.

If the Bill of Rights entrenched a general right to information, that would of course not expose all official information to public scrutiny. Even the most committed advocates of open government acknowledge that there are always sensitive classes of information — such as information necessary to protect personal privacy, or commercial confidentiality, or national security, or law enforcement — which government is entitled to conceal. But the limitation clause is available to protect such information: government could procure legislation to preserve the confidentiality of these classes of information, and then justify that legislation under the limitation clause. Such legislation would be of the same form as a typical Freedom of Information Act. The main value of a general right to information would consequently be to force government to define and defend the classes of information which it asserts have to be secret. Have the drafters bequeathed us a general right of information?

Section 23 gives every person a 'right of access to all information held by the state or any of its organs at any level of government'; but only 'in so far as such information is required for the exercise or protection of any of his or her rights'. The drafters' decision to limit the right to information required for the exercise or protection of one's rights is unfortunate.³⁸ It invites a conservative court to read the right as merely ancillary to litigation: as conferring entitlement only to the information necessary to vindicate one's rights at law — no more, in other words, than a

³⁸ The limitation appears to be derived from Hugh Corder et al *A Charter for Social Justice* (1992) 54. In that work the authors propose the following access-to-information clause:

'(1) Everyone has the right of access to information held by any authority performing governmental functions.

(2) Everyone has the right of access to that information which is necessary for the implementation of his or her rights.'

constitutional right to discovery. There is nothing, however, in the text which precludes the courts from reading the right more broadly. One may seek to exercise or protect one's rights by means other than litigation — for instance through publicity or by resort to the political process — and information may be required for that purpose. On that, broader, reading, s 23 would come substantially closer to conferring a general right of access to official information.

In choosing between a narrower reading and a broader one, the courts should have regard to the point of the Bill of Rights — to foster a culture of justification. That point will usually argue for a broader reading. So the drafting is not entirely irretrievable, although it is to be regretted that the opportunity to enact an unambiguous general right to information was squandered.

Special Immunities: Labour and Religion

Despite these deficiencies, the rights in Chapter 3, as the above account reveals, do comprise a set of principles with considerable power to fuel a vigorous inquiry into the justification of decisions within their purview; too much power for some, as the efforts of various lobbies to procure special exemptions from such inquiry attests.³⁹ The impact of two such lobbies is conspicuous in the Bill. Section 33(5)(a) states that the 'provisions of a law in force at the commencement of this Constitution promoting fair employment practices, orderly and equitable collective bargaining and the regulation of industrial action shall remain of full force and effect until repealed or amended by the legislature'. The intention is apparently to insulate existing labour legislation from inquiry under the Bill into its justification, although the apparently deliberate elimination of wording expressly giving this exemption primacy over the rights in the Bill,⁴⁰ which was present until late in the drafting process,⁴¹ might, on a theory which attached importance to the drafting history,⁴² be thought to weaken the evidence of that intention.

The other lobby is the religious. Section 14(1) guarantees the right to freedom of religion. That idea might be thought to entail freedom from governmental practices which favour one religious perspective over another.⁴³ If it did, it would open inquiry into the justification of

39 The most notorious effort was the attempt by traditional leaders represented in the drafting process to insulate African customary law from question under the Bill's guarantee of gender equality.

40 'Notwithstanding the provisions of this Chapter . . . '.

41 Technical Committee on Fundamental Rights during the Transition *Tenth Progress Report* (5 October 1993) clause 34 (5).

42 As to which, see note 54 below.

43 In the United States, this question is sometimes thought to be the exclusive province of the Establishment Clause of the First Amendment to the Constitution ('Congress shall make no law respecting an establishment of religion'), and consequently not one which can arise under the Free

governmental practices which might be thought to favour one religion over another, or religion in general over the absence of religion, such as compulsory school prayer, religious education in state schools, state support for private religious education, and the observance of religious rituals in state institutions.

No doubt anticipating these possibilities, the drafters provided, in s 14(2), that 'religious observances may be conducted at state or state-aided institutions under rules established by an appropriate authority for that purpose, provided that such religious observances are conducted on an equitable basis and attendance at them is free and voluntary'. The intention of this exemption appears to be to insulate religious practices in public institutions from inquiry of the kind just outlined. As it is drafted, though, the exemption seems to protect very little.⁴⁴

For one thing, it works only where attendance at a religious observance is free and voluntary; but it is coming widely to be recognized that religious observances which carry the endorsement, tacit or otherwise, of a state institution are inherently coercive. State endorsement of a religious perspective — be it only the perspective that religion is to be preferred to irreligion — turns those who adhere to that perspective into insiders, and those who do not into outsiders.⁴⁵ That alone puts pressure — governmental pressure, since it comes from the state — on non-adherents which may be considered coercion.⁴⁶ Furthermore, the exemption applies only where religious observances 'are conducted on an equitable basis'. But state endorsement of a religious perspective might be thought inequitable to any who do not share that perspective.

The result is that a religious observance can be taken to be safely within the exemption in s 14(2) only where the state does not endorse a religious perspective, whether explicitly or tacitly. It will seldom be easy to structure a religious observance at a state or state-aided institution to meet this condition.

What is more, the exemption in s 14(2) is not framed to prevail over freedom of religion; nor, for that matter over the freedoms of conscience, thought, belief and opinion. On the contrary, it is expressed not to

Exercise Clause ('Congress shall make no law . . . prohibiting the free exercise [of religion]'). From the particular textual shape of the First Amendment, however, it does not follow that the question cannot arise under the concept of freedom of religion, properly understood.

⁴⁴ Potentially more successful is s 14(3), which provides:

'Nothing in this Chapter shall preclude legislation recognizing —

(a) a system of personal and family law adhered to by persons professing a particular religion; and
(b) the validity of marriages concluded under a system of religious law subject to specified procedures.'

The main point of this subsection is apparently to insulate the religious practices within its purview from challenge under the guarantee of gender equality in s 8.

⁴⁵ Cf *Wallace v Jaffree* 472 US 38 (1984) at 69 (O'Connor J).

⁴⁶ Cf *Lee v Weisman* (1992) 120 L Ed 2d 467 (S Ct).

derogate from the generality of those freedoms.⁴⁷ This weakens the force of the exemption. Nor is there any indication that the exemption is to prevail over the prohibition in s 8 — known as the equality clause — on unfair discrimination, direct and indirect, on the ground of religion, conscience or belief.⁴⁸ This weakens even further the capacity of the exemption to insulate from scrutiny state practices that favour certain religious perspectives over others.

There is therefore ample support in the Bill for a reading of s 14(2) which gives it a narrow effect. And a court should be inclined to give that support great weight. Special exemptions from the rights in the Bill are special immunities from the standards of justification that it announces. They tend, therefore, to undermine the Bill's primary object of inaugurating a culture of justification. They should consequently be construed as narrowly as possible. It follows that any textual support in the Bill for a narrow reading of the exemptions should be given as much weight as possible.

Resolving Ambiguity: Affirmative Action

The same kind of approach, as I have already suggested, should govern any ambiguity in the Bill: any ambiguity should be resolved in the way which optimizes the Bill's capacity to foster a culture of justification.

One such ambiguity may be thought to arise in the field of affirmative action. Section 8 (the equality clause) guarantees both equality before the law and equal protection of the law, and prohibits unfair discrimination both generally and on the particular grounds of race, gender, sex, ethnic or social origin, colour, sexual orientation, age, disability, religion, conscience, belief, culture or language. It then continues:

'This section shall not preclude measures designed to achieve the adequate protection and advancement of persons or groups or categories of persons disadvantaged by unfair discrimination, in order to enable their full and equal enjoyment of all rights and freedoms.'⁴⁹

This provision is intended to save affirmative action programmes — programmes to undo the disadvantages caused by apartheid — from challenge under the equality clause. The desirability of such a provision was not very controversial during the drafting process. All three political parties which published proposed bills of rights prior to the process affirmed the need for such a provision.⁵⁰ But an important controversy

47 The exemption granted by s 14(2) is prefaced with the words, 'Without derogating from the generality of subsection (1) . . .'. Subsection (1) guarantees the freedoms of conscience, religion, thought, belief and opinion.

48 Section 8(2).

49 Section 8(3)(a).

50 See the African National Congress's *Draft Bill of Rights* (Preliminary Revised Version February

during the drafting process raised the question how closely a court applying this provision could scrutinize something purporting to be an affirmative action measure to make sure that it really was one.

The controversy was sparked by an earlier draft, in which the place of the words 'designed to achieve' was taken by the words 'aimed at'.⁵¹ Those words raised the concern that they could be understood to authorize a court to ask whether a measure was aimed at undoing disadvantage, but not whether it was actually likely to undo disadvantage. The concern, in other words, was that the provision might be construed to empower the court to review the intentions of the authors of the measure, but not its effects. If, say, the government reserved 95 per cent of senior civil service jobs for Africans, it might be impossible to contest the government's assertion that its aim was to protect and advance categories of persons disadvantaged by unfair discrimination, in order to enable their full and equal enjoyment of all rights and freedoms; but it might be a lively question whether that was the probable effect of the reservation. The anxiety was that the courts would have been confined to scrutinizing the ends sought by the authors of the measure, and precluded from scrutinizing the means chosen to realize those ends.

It was to meet this concern that the words 'aimed at' were replaced with the words 'designed to achieve'. On its face, however, the new wording is far from an unambiguous resolution of the controversy. The words 'designed to achieve' can mean (a) 'intended to achieve', in which case they mean much the same as 'aimed at'; or (b) they can mean 'constructed so as to achieve'. In this latter sense, the wording refers to measures which are not only intended to achieve something, but the design of which makes it objectively probable that they will in fact achieve that something; which are structured, in other words, to achieve that thing. In this sense 'designed to' embodies much of the ambivalence of 'calculated to', which, although it can mean 'intended to', the courts often interpret as 'likely to';⁵² indeed, it incorporates both those meanings.

In which sense is 'designed to achieve' used here: (a) or (b)? For what it is worth, the drafting history rules out (a); if that had been the sense intended, there would have been no point in discarding the original wording, 'aimed at'.⁵³ But a court may, and probably should, decide that

1993) Art 14; the National Party's *Government's Proposals on a Charter of Fundamental Rights* (2 February 1993) s 6 (3); the Democratic Party's *Draft Bill of Rights* (May 1993) Art 2 (2). See also the KwaZulu Legislative Assembly's proposed *Constitution of the State of KwaZulu/Natal* (1 December 1992) clause 10 (b).

51 Technical Committee on Fundamental Rights during the Transition *Seventh Progress Report* (29 July 1993) clause 2 (3). In this earlier draft, there were also other differences in wording.

52 Or some minor variation on that expression: see, for example, *Amoils v Johannesburg City Council* 1943 TPD 386 at 389; *R v Lord* 1926 CPD 262 at 264; *Brink v Lichtenburg Liquor Licensing Board* 1944 TPD 161 at 171; *Johannesburg Liquor Licensing Board v Short* 1946 AD 713 at 722-3; *Rossouw v Norton NO* 1950 (2) SA 1 (C) at 5; *S v Beyleveld* 1964 (1) SA 269 (T) at 272-3.

53 What is more, the political negotiators who settled the wording declined to insert the word

the drafting history is irrelevant.⁵⁴ A better reason for preferring sense (b) over sense (a) is simply that, since it brings not only ends but also means under judicial scrutiny, it brings the whole measure, rather than an arbitrary fragment of it (the mere intentions of its authors) into the enterprise of justification. Sense (b) consequently makes the provision operate as a fuller and more coherent contribution to the cultivation of an ethic of justification. That is a powerful reason for preferring it over sense (a). On this view, the point of the Bill of Rights — to foster a culture of justification — is again a resource which helps resolve ambiguities in the Bill's text.

CONCLUSION

The point of the Bill of Rights is to foster a culture of justification. This is something which appears not only from our history, but from the text of the Bill itself. Measured against that point, the Bill suffers from significant weaknesses. Fortunately, the point of the Bill of Rights is not just a criterion for evaluating the Bill, but also a powerful guide for answering the questions of interpretation that it generates. If the courts use that guide properly, they can overcome most of the deficiencies in the Bill, and make of it a potent weapon for bringing about democracy.

'reasonable' before 'measures' or the word 'reasonably' before 'designed', evidently because they had been assured by the technical committee which drafted the Bill that 'the rationality of the measures is sufficiently catered for by the qualification which follows the words "in order to" ' (unpublished and undated drafts generated by the Technical Committee on Fundamental Rights during the Transition during September 1993). Whatever one thinks of the soundness of the technical committee's opinion, it seems clear that its effect was that the wording finally adopted was accepted on the understanding that the rationality of affirmative action measures was to be reviewable. That would entitle a court to scrutinize not just the intentions of the authors of the measures, but also the effects of the measures. Consequently, so far as a court considers the drafting history relevant, this feature of that history appears to demonstrate that the text was adopted on the understanding that not just the ends of affirmative action measures, but also their means, were to be amenable to judicial review.

54 For several reasons, among them that people governed by a text are entitled to order their lives on the strength of what they can see; on the strength, in other words, of the published words and published authoritative commentary, without having to burrow among obscure and inaccessible drafting sources. Other reasons for discounting the drafting history appear from a rich literature. See, for example, Ronald Dworkin *Law's Empire* (1986) chapter 10; *Life's Dominion* (1993) chapter 5.